



File No.: EXP202308315

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 11, 2023, a complaint was received at the Spanish Agency for Data Protection from A.A.A. (hereinafter the complainant) against the company 4T OCIO Y CAFÉ 2009, S.L. with NIF B91806885 (hereinafter, the respondent).

The complainant states that they work in an office located at ***ADDRESS.1, and in the common areas/porticos of the building and pedestrian passage, there is a hospitality establishment currently called B.B.B., owned by the company 4T OCIO Y CAFÉ 2009, S.L., which has installed four surveillance cameras without the express consent of the community of property owners.

Regarding the location of these cameras, the complainant expresses total disagreement and does not consent to the camera installed by the hospitality establishment capturing and recording images of them every time they are obliged to use the porticos/common areas owned by the building.

Along with their complaint, they attach a copy of their ID, a simple note of the office, as well as photographs of the aforementioned surveillance cameras and a plan where the common areas are marked in red indicating where the said surveillance cameras are located.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

On July 5, 2023, a response was received from the respondent stating that they have contracted the installation and maintenance of the surveillance system subject to this complaint with the company Movistar Prosegur Alarmas.

The system consists of nine cameras: four of them connected via wifi with cloud storage and five cameras connected to a video recorder that stores images for about 25 days.

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They provide photographs of the devices connected to the video recorder, which are capturing areas inside the establishment, and photographs of the video recorder located in the double ceiling above the bar.

The respondent claims that only the two partner owners of the establishment access these cameras through a mobile application with a username and password.

They provide images of the field of view of these cameras, which show that they capture interior areas of the establishment.

Regarding the other four cameras connected via wifi to the cloud, the respondent indicates that they are only viewable through an application provided by Movistar Prosegur Alarmas, on the mobile phones of the two partner owners of the establishment.

Three of these four cameras are capturing the outdoor terrace of the establishment; in the images of the field of view of these cameras provided by the respondent, it is noted that three of these cameras are capturing the large outdoor terrace of the establishment located in the community porticos.

They provide photographs of the informative signs, several of which are installed in visible locations and include the identification of the data controller and an address to exercise data protection rights.

Despite all the documentation submitted, the AEPD has not received from the complainant any documents proving that the respondent has the authorization of the community of property owners of ***BUILDING.1 to capture images of community areas, considering that on June 27, 2023, the

complainant submitted a certification from the property administrator of the community of property owners indicating that the company 4T OCIO Y CAFÉ 2009, S.L. does not have authorization from the community of property owners of ***BUILDING.1 to capture images in community areas. They also do not inform about the storage time in the cloud of the images recorded by the four cameras connected to the wifi network.

THIRD: On August 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On August 22, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: On September 3, 2024, the aforementioned initiation agreement was deemed notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise pronouncement regarding the responsibility attributed,

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3/12

may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning procedure determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations against the initiation agreement of the procedure and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, as a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: A hospitality establishment currently called B.B.B., owned by the company 4T OCIO Y CAFÉ 2009, S.L., has installed a video surveillance system at ***ADDRESS.1, without the express consent of the community of property owners of said building.

SECOND: There is a contract for alarms and video surveillance and an installation certificate, both with the company PROSEGUR/MOVISTAR ALARMAS, provided by the company 4T OCIO Y CAFÉ 2009 S.L.

The video surveillance system consists of 9 cameras, of which three are capturing the outdoor terrace of the establishment and the rest are capturing the interior of the establishment.

Photographs of the video surveillance system and informative signs indicating that it is a video-surveilled area are provided, which include the identification of the data controller and an address to exercise data protection rights.

LEGAL GROUNDS

I

Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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4/12

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to said Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data must have a legal basis for it to be lawful.

Thus, the processing of personal data must fall within one of the cases of Article 6.1 of the GDPR, which states the following:

1. Processing shall be lawful only if at least one of the following applies: a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

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28001 – Madrid
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5/12

f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

The use of video surveillance systems in the common areas of a community of property owners must respect various aspects so that such a recording system complies with the current data protection regulations.

First, it must have the proper legitimacy, so that the installation of cameras in common areas is in

accordance with data protection regulations, it will be necessary for such installation to have been approved by an agreement of the Board of Owners, and this agreement must be recorded in the minutes of that Board.

It is recommended that the agreement reflect some of the characteristics of the video surveillance system, such as the number of cameras or the area covered by them.

Second, prior to its operation, the activity register related to this processing must be completed. This is an internal document. The FACILITA_RGPD tool available on the AEPD website can be used when it does not involve large infrastructures (train stations, shopping centers). The Guide on the use of video cameras for security and other purposes provides a model for the activity register.

Third, one or more signs must be installed at the various access points to the monitored area, in a visible location, informing that access is to a video-monitored area.

The sign will clearly indicate the identity of the person responsible for the installation, to whom and where to address to exercise the rights provided by data protection regulations, and where to obtain more information about the processing of personal data.

The AEPD provides a model sign in the Guide on the use of video cameras. Likewise, the remaining information required by data protection legislation will be made available to the affected parties.

This information may be available at the concierge, reception, offices, bulletin boards, or be accessible via the Internet.

Regarding the installation of the video surveillance system, the cameras may only capture images of the common areas of the community. Images of public roads may not be captured unless it is essential for the pursued purpose, except for a minimal strip of the accesses to the property, nor images of adjacent land and homes or any other external space.

If orientable cameras and/or zoom cameras are used, the installation of privacy masks will be necessary to avoid capturing images of public roads, land, and third-party homes.

The hiring of an external video surveillance service or the installation of cameras by a third party does not exempt the community of property owners from compliance with data protection regulations.

Regarding the monitors and viewing of images, it should be indicated that access to the images will be restricted to persons designated by the community. Under no circumstances will they be accessible to neighbors via community television channels.

If access is made via an Internet connection, it will be restricted with a username and password (or any other means that guarantees unique identification and authentication), which will only be known by the persons authorized to access such images.

Once the system is installed, it is recommended to change the password, avoiding easily deducible ones.

In the event that the camera system includes a recording system, it will be located in a monitored or restricted access area. Only authorized personnel will have access to the recorded images, who must enter a username and password.

The images will be retained for a maximum period of one month from their capture, after which they will be deleted.

Images used to report crimes or offenses will be attached to the report and will be retained for possible delivery to the Security Forces and Corps or to the Courts and Tribunals that require them. They may not be used for any other purpose.

Requests for images by the Security Forces and Corps will be made within the framework of judicial or police actions. The request to the data controller will be the document that supports them in providing data to them or to the Courts and Tribunals that require them.

III

Violation of Article 6 of the GDPR

In this case, from the documentation in the file, provided by the complaining party, it is evident that a video surveillance system is installed in the common areas of the building located at

ADDRESS.1BUILDING.1, in the locality ***LOCALITY.1*** without prior agreement of the Board.

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of Property Owners, with a sign indicating a video surveillance area stating that the data controller would be the claiming party.

The claiming party in their complaint states that they have asked the property management administrator whether the company 4T OCIO Y CAFÉ 2009, S.L. has authorization for the installation of cameras in the common areas, to which the administrator has responded that the company 4T OCIO Y CAFÉ 2009, S.L. does not hold any authorization that allows for the placement of the video surveillance system located in the common areas.

It is considered that the facts presented violate the provisions established in Article 6 of the GDPR, which constitutes an infringement classified under Article 83.5 of the GDPR, which states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)"

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The obtained images may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The data controller must maintain a record of processing activities carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, assess them, and, where appropriate, adopt the appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

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9/12

The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and Tools").

Also of interest, in the case of carrying out low-risk data processing, is the free tool Facilita (in the section "Guides and Tools"), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Administrative Infraction

It is considered that the facts presented violate the provisions of Article 6 of the GDPR, constituting an infraction classified under Article 83.5 of the GDPR, which states the following:

"Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)."

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph is considered very serious in accordance with Article 72.1 b) of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)."

C/ Jorge Juan, 6

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10/12

VI

Sanction

The fine must be, in each individual case, effective, proportionate, and dissuasive, in accordance with

the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to graduate the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and as provided in Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

For all these reasons, it is considered that the corresponding sanction is an administrative fine in the amount of 500 euros. It should be noted that the voluntary payment of the proposed amounts does not exempt from proving the regularization of the video surveillance system in accordance with the current regulations.

VII

Measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

This Agency requires the controller to, within one month:

- Prove that they have proceeded to remove the system of cameras or video cameras placed in the common areas/porticos of ***ADDRESS.1 of ***BUILDING.1, in the locality of ***LOCALITY.1, where there is currently a hospitality establishment called B.B.B., owned by the company 4T OCIO Y CAFÉ 2009, S.L., unless they prove the obtaining of the Community's agreement for the placement of the cameras.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

VIII

Resolution

In accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on 4T OCIO Y CAFÉ 2009, S.L., with NIF B91806885, for an infraction of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED euros).

C/ Jorge Juan, 6

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11/12

SECOND: TO ORDER 4T OCIO Y CAFÉ 2009, S.L., with NIF B91806885, to, pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, provide evidence of having removed the system of cameras or video cameras placed in the common areas/porticos of ***ADDRESS.1, of the ***BUILDING.1, located in ***LOCATION.1, where there is a hospitality establishment currently called B.B.B., owned by the company 4T OCIO Y CAFÉ 2009, S.L., unless it provides proof of having obtained the agreement of the Community for the placement of the cameras.

THIRD: TO NOTIFY this resolution to 4T OCIO Y CAFÉ 2009, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the

restricted account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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12/12

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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